



Prices and Incomes Act 1968

1968 CHAPTER 42

An Act to prolong the duration of certain provisions of the Prices and Incomes Acts 1966 and 1967; to extend the maximum period for which standstills in prices and charges or terms and conditions of employment may be enforced under the powers of those Acts, and to confer further powers for requiring reductions in prices and charges and for the deferment of wages regulation orders and agricultural wages orders; to limit company distributions; to limit rent increases and mitigate certain past rent increases for dwelling-houses, and to enable rents of local authority housing to be changed without notice to quit being given; and for connected purposes. [10th July 1968]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

REGULATION OF PRICES AND EARNINGS

1. So long as this section has effect, sections 7 to 22 of the Prices and Incomes Act 1966 shall continue in force without any extension by Order in Council under section 6 of that Act of the period for which they were brought into force under that section.

Continuation of Part II of Prices and Incomes Act 1966.

1966 c. 33.

2. For section 6(3) of the Prices and Incomes Act 1967 there shall be substituted:—

Extension of Prices and Incomes Act 1967 ss. 1 to 3. 1967 c. 53.

“(3) Sections 1 to 3 above shall cease to have effect at the end of the year 1969, but the expiration of those sections shall not affect any order or direction previously made or

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1966 c. 33.

given under or by virtue of them for the application of any provision of the Prices and Incomes Act 1966, nor the operation of those sections for purposes of any such order or direction and matters arising therefrom."

Increase in
length of
standstill
under Prices
and Incomes
Act 1967
s. 1 or 3.
1967 c. 53.

3.—(1) Where following a reference to the National Board for Prices and Incomes an order is made under section 1(2)(b) or 3(1) of the Prices and Incomes Act 1967 for the application of any provision of the Prices and Incomes Act 1966, the maximum period for which the provision may be made to apply shall be as specified in subsection (2) or (3) below.

(2) In the case of an order under section 1(2)(b) of the Prices and Incomes Act 1967, the maximum period shall be a period extending until the expiration of the eleven months beginning with the date of publication of the reference to the Board (instead of the six months so beginning as provided by section 1(2)(b)) or, in a case within section 2(2)(c) of that Act, with the date of publication of the direction given by virtue of that section (instead of the six months beginning with the date when the direction comes into force as provided by section 2(2)(c)).

(3) In the case of an order under section 3(1) of the Prices and Incomes Act 1967, the maximum period shall be a period ending eight months after the date of the order but beginning with that date or a later date (instead of a period of three months beginning with the date of the order or a later date, as provided by section 3(1)); and accordingly an order under section 3(1) may, in a case within subsection (1) of this section, be made not more than eleven months after the date of publication of the reference to the Board (instead of not more than six months after that date, as provided by section 3(2) of that Act).

(4) Where before the date of the passing of this Act an order has been made under section 1(2)(b) or 3(1) of the Prices and Incomes Act 1967 for the application of any provision of the Prices and Incomes Act 1966, the order may be amended by a further order of the Secretary of State under this subsection so as to extend, within the limits permitted by section 1(2)(b) or 3(1) as varied by this section, the period for which the said provision is to apply by virtue of the order amended; but—

(a) an order shall not be amended by a further order under this subsection unless the like notice has been given of the proposal to make the further order as is required by section 1 or 3 of the Prices and Incomes Act 1967 for orders under section 1(2)(b) or 3(1) of that Act; and

(b) paragraphs 3 to 5 of the Schedule to that Act (which relate to the contents and publication of such a notice and other matters preliminary to the making of those orders, and to the parliamentary procedure on those

orders) shall apply in relation to an amending order under this subsection as they apply in relation to those orders.

(5) Where in connection with a reference to the National Board for Prices and Incomes a standstill on an award or settlement is or has been imposed or continued under section 14 or section 15 of the Prices and Incomes Act 1966, or under section 1, section 2 or section 3 of the Prices and Incomes Act 1967, or under the last foregoing subsection, the award or settlement shall not be the subject of any second or further reference to the National Board for Prices and Incomes either during the period of standstill under the provisions of those sections as amended by subsections (2) and (3) of this section or after the expiration of that period; and on the expiration of that period no further standstill shall be imposed in respect of that award or settlement.

4.—(1) Where under section 2(1) or 2(3) of the Prices and Incomes Act 1966 any question is referred to the National Board for Prices and Incomes concerning prices for the sale of goods or charges for the performance of services, including charges for the application of any process to goods, the Minister or Ministers referring the question may include in the reference a direction to the Board to consider and, if the Board thinks fit, include in the Board's report recommendations for the reduction of all or any of the prices or charges; and if (not later than the time allowed under section 5 of that Act) a report of the Board on the reference is published containing such a recommendation, then subject to the provisions of this section the Minister or Ministers may by order direct that any of the prices or charges covered by the recommendation shall be reduced to such extent and for such period not exceeding twelve months (beginning with the date of the order or within three months thereof) as may be specified in the order.

Power to require reduction of prices or charges.

(2) An order shall not be made under subsection (1) above in consequence of a report of the Board more than three months after the date of publication of that report; and before making an order under that subsection the Minister or Ministers shall—

- (a) publish in the Gazette notice of the proposal to make it, which shall invite representations about the proposal to be made in writing within a stated period (not being less than fourteen days) to him or them, or to such one of them as the notice may designate, by or on behalf of any persons or undertakings selling goods or performing services for which the prices or charges are affected by the proposal; and
- (b) take into consideration any representations so made.

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(3) No order made for purposes of this section shall impose on any prices or charges a restriction more stringent than is recommended by the Board or more stringent than has been proposed by a notice given in accordance with subsection (2) above; but subject to that, an order under subsection (1) above may give effect with such modifications as the Minister or Ministers may think proper to the proposal of which notice has been so given.

(4) An order made for purposes of this section shall prescribe in such manner and by reference to such matters as the Minister or Ministers may think fit the prices and charges that may be lawfully charged in cases to which the order applies; but where anything is done with the written consent of a Minister making or joining in making an order under this section, it shall not by reason of that order be unlawful under this section.

Any written consent given under this subsection shall be notified in the Gazette.

1966 c. 33.

(5) For purposes of this section the expressions "price" and "goods" have the same meanings as in Part II of the Prices and Incomes Act 1966; and, subject to the provisions of this section, the provisions of that Act specified in Schedule 1 to this Act (of which the subject matter is indicated in column 2 of the Schedule) shall apply for purposes of this section as they would apply if an order made for those purposes were an order under section 7(1) of that Act and if any overcharge beyond the price or charge permitted by an order under this section were an increase forbidden by that section.

1967 c. 53.

(6) The taking of steps with a view to the making of an order under this section shall not prejudice the exercise of any powers conferred by the Prices and Incomes Acts 1966 and 1967 or either of them, and in particular steps may be taken at the same time in relation to the same matter both under this section and under section 1 of the Prices and Incomes Act 1967 with a view to the making of an order either under this section or under that section.

Deferment
of wages
regulation
orders and
agricultural
wages orders.

5. The provisions of Schedule 2 to this Act shall have effect to authorise the deferment of the wages regulation orders and agricultural wages orders there mentioned.

PART II

REGULATION OF COMPANY DISTRIBUTIONS

Restriction
on ordinary
dividends,
and related
restrictions.

6.—(1) Subject to the provisions of this section, the Treasury may by order applying to any description of companies specified in the order, or by directions applying to any companies specified in the directions, prohibit the companies from declaring, without first obtaining the consent of the Treasury, ordinary dividends for

any financial year at a rate greater than that paid for the preceding financial year.

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(2) For purposes of this section "ordinary dividend" means a dividend payable in cash, not being a capital dividend nor a fixed rate dividend; but so long as a company is subject to any order or directions under this section prohibiting it from declaring ordinary dividends as mentioned in subsection (1), then, except in so far as provision to the contrary is made by the order or directions, the company shall also be prohibited, without first obtaining the consent of the Treasury,—

- (a) from making any distribution out of assets of the company in respect of equity share capital of the company otherwise than by payment of an ordinary dividend or a fixed rate dividend or by repayment of capital; and
- (b) from assuming, whether conditionally or otherwise, any obligation to make a distribution as aforesaid.

(3) For purposes of this section a company is to be treated (subject to subsection (4) below) as declaring ordinary dividends for a financial year at a rate greater than that paid for the preceding financial year if at any time it declares an amount of ordinary dividends for the year which, alone or taken with any amount declared earlier, is greater than the amount of the ordinary dividends paid for the preceding financial year (which is not to be taken as including any amount paid in excess of that lawfully declared); but—

- (a) there shall be left out of the comparison to be made in connection with any declaration amounts declared earlier or paid for the preceding financial year so far as declared or paid in respect of share capital repaid before the declaration in point; and
- (b) dividends not expressed to be payable for the financial year in which they are declared shall be treated as dividends for the one before; and
- (c) the declaration of a dividend contrary to an order or direction under this section shall not be invalidated except to the extent to which it contravenes the order or direction.

(4) In this section references to a financial year of a company are references to any period in respect of which a profit and loss account of the company laid before it in general meeting is made up, and "the preceding financial year" means the immediately preceding financial year; but—

- (a) where comparison is to be made between the rates of ordinary dividend for two financial years differing in length by a month or more (both years having come

PART II

to an end), the amount to be taken into account as dividends paid for the earlier year shall be treated as increased or reduced in proportion to the greater or less length of the later year ; and

- (b) where it appears to the Treasury that a comparison with ordinary dividends for the immediately preceding financial year of a company would for any reason be inappropriate, the Treasury may direct that for purposes of the comparison "the preceding financial year" shall mean such earlier year as may be specified in the direction ; and
- (c) in relation to the declaration of ordinary dividends in or for its first financial year by a new company formed in connection with the reconstruction or amalgamation of another company or companies, this section shall have effect as if the company were not a new company but had paid no ordinary dividends for any previous financial year.

(5) Subject to subsection (4)(c) above nothing in this section shall be taken to apply to a new company during its first financial year or to the declaration by it of ordinary dividends for that year.

(6) The Treasury shall not withhold their consent under this section to the doing of anything by a company, if it is made to appear to the Treasury—

- (a) that the company is a close company for purposes of Part IV of the Finance Act 1965 ; and
- (b) that the action proposed to be taken by the company does not go beyond that which is likely to be required if there is not to be, within the meaning of section 77 of that Act, a shortfall in the company's distributions for an accounting period (any operation of section 77(4) in relation to the restrictions imposed by this section being for this purpose disregarded).

(7) In this section references to the declaration of a dividend by a company are references to the taking of the decision to pay it, whether or not the decision is that of the company in general meeting ; "equity share capital" means any share capital not restricted, as regards participation in distributions of profits, to fixed rate dividends ; and "fixed rate dividend" means a dividend which in accordance with the rights attached to any share capital is payable in cash at a fixed rate on that capital or at a rate fluctuating only with the standard rate of income tax.

(8) This section shall apply to every company incorporated under the law of any part of the United Kingdom except a company which is for the time being treated under section 37 of the Finance Act 1965 as an investment trust for purposes to which that section applies ; but nothing in this section shall apply to companies not incorporated under the law of the United Kingdom.

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7.—(1) Any order of the Treasury under section 6 above may formulate the description of companies to which the order is to apply in any way, and in particular may include or exclude named companies.

Further provisions as to orders, directions and regulations.

(2) Any order of the Treasury under section 6 above may be varied or revoked by a further order of the Treasury.

(3) The Treasury may by regulations make general provision for purposes of section 6 above—

(a) prescribing the form of applications for consent and the information to be furnished with any such application (but without prejudice to the power of the Treasury to request further information in connection with any such application) ; or

(b) for other incidental or supplementary matters.

(4) Any order or regulations of the Treasury under this Part of this Act shall be made by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) Directions of the Treasury under this Part of this Act (including directions given for the purpose only of revoking earlier directions) shall be given by publication in the London, Edinburgh and Belfast Gazettes, and where publication in the Gazettes takes place on different dates, they shall be deemed to be given on the date on which they are first published in any of the Gazettes.

8.—(1) If any act prohibited by section 6 above is done in the case of any company, the company shall be guilty of an offence under this section.

Offences.

(2) If in furnishing information in connection with an application for consent under section 6 above a person makes any statement, or produces or makes use of any document, which to his knowledge is or may be misleading, false or deceptive in a material particular, he shall be guilty of an offence under this section.

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(3) Where an offence under this section committed by a company is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the company or any person who was purporting to act in any such capacity, he as well as the company shall be guilty of the offence.

(4) A person guilty of an offence under this section shall be liable—

- (a) on summary conviction to a fine not exceeding one hundred pounds ; or
- (b) on conviction on indictment to a fine which, if the offender is not a body corporate, shall not exceed five hundred pounds.

(5) Proceedings for an offence under this section shall not be instituted in England or Wales except by or with the consent of the Attorney General, and shall not be instituted in Northern Ireland except by or with the consent of the Attorney General for Northern Ireland.

PART III**REGULATION OF RENT INCREASES**

Restriction
on rent
increases under
regulated
tenancies.

9.—(1) Except in the cases and to the extent authorised by regulations made by the Minister under this section, the rent payable for any statutory period of a regulated tenancy of a dwelling house shall not, where a rent for the dwelling-house is registered, be increased by a notice of increase served while this section is in force ; and where a notice of increase purports to make in the rent an increase contrary to this subsection, the notice shall have effect to make so much, if any, of that increase as is permitted by the regulations, and no more.

(2) The Minister may by regulations make such provision as to contractual periods of regulated tenancies as appears to the Minister to be expedient in order to secure that the restriction imposed by subsection (1) above in relation to statutory tenancies is not made ineffective by the grant to a tenant (whether a statutory tenant or not) of a new tenancy or by any other arrangement or device.

(3) The provision which may be made by regulations under subsection (1) above may include provision for excepting from the restriction imposed by that subsection, either generally or in a particular area, such regulated tenancies (determined by reference to rateable values or otherwise) as may be provided by the regulations, or for making other exceptions, as well as for regulating in any manner the extent to which, or stages

by which, a rent may be increased ; and any regulations under this section—

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- (a) may make such distinctions as appear to the Minister to be appropriate, and in particular may distinguish between payments for the use of furniture or for services and the remainder of a rent and provide for any necessary apportionment of the rent payable or of the rent registered for a dwelling-house ; and
- (b) may make different provision for different cases, whether by reference to area, rateable value or otherwise ; and
- (c) may make consequential, incidental or supplementary provision for the purposes of the regulations, and in particular provision for the admission as evidence of any matter (and in Scotland sufficient evidence) of documents used under or for the purposes of regulations under this section.

(4) This section and regulations made under it shall have effect notwithstanding anything contained in the Rent Act, and the consequential, incidental and supplementary provision that may be made by the regulations shall include such provision adapting or modifying that Act as appears to the Minister necessary for any purpose of the regulations ; and in the exercise of any power to make regulations under that Act regard may be had to matters connected with the operation of this section.

(5) Any power of the Minister to make regulations under this section shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(6) In the application of this section to England and Wales, “ the Rent Act ” means the Rent Act 1968, and—

1968 c. 23.

- (a) “ the Minister ” means the Minister of Housing and Local Government or, as regards Wales and Monmouthshire, the Secretary of State ; and
- (b) “ notice of increase ” means a notice of increase under section 22(2) of that Act ; and
- (c) other expressions shall be construed as in that Act.

(7) In the application of this section to Scotland, “ the Rent Act ” means the Rent Act 1965, and—

1965 c. 75.

- (a) “ the Minister ” means the Secretary of State ; and
- (b) “ notice of increase ” means a notice of increase under section 7 of that Act ; and
- (c) other expressions shall be construed as in that Act.

PART III

Restriction
on increases
in local
authority
rents.

10.—(1) Except in such cases and subject to such conditions as may be prescribed by any directions of the Minister, it shall not be lawful for a local authority to charge in respect of any houses to which this section applies rents exceeding the former rents, unless the increases accord with proposals submitted to and passed by the Minister under this section.

1958 c. 42.

1968 c. 31.

(2) The houses to which this section applies (in the following provisions of this section referred to as “local authority houses”) are those of which the rents fall to be carried to the local authority’s Housing Revenue Account kept under the Housing (Financial Provisions) Act 1958 or, in the application of this section to Scotland, the Housing (Financial Provisions) (Scotland) Act 1968; and for purposes of this section—

(a) “house” has the same meaning as it has for purposes of that Act, and “local authority” means any authority keeping a Housing Revenue Account under that Act; and

(b) “Minister” means, in relation to authorities in Scotland or in Wales and Monmouthshire, the Secretary of State and, in relation to other authorities, the Minister of Housing and Local Government:

Provided that the Minister may give directions extending the operation of this section to other housing accommodation of which a local authority (as above defined) in any part of Great Britain or a county council in England or Wales is landlord, and references in this section to a local authority or to a local authority house, and (for these cases) the expression “the coming into force of this section”, shall be given an extended or modified meaning accordingly.

(3) Any reference in this section to the former rent of a local authority house is a reference to the rent last payable for it as a local authority house before the date of the coming into force of this section (but reduced by the amount of any reduction made in the rent for the house under section 11 below) or, if there has been no rent so payable, the rent first payable for it as a local authority house after that date.

(4) On any comparison between rents under this section there shall be excluded from each so much, if any, of it as is determined in accordance with directions of the Minister to represent a payment for the use of furniture or for services or to represent rates, including water rates and charges; and in the case of one or both of the rents being payable at a rate varying according to the circumstances from time to time of the tenant (including the earnings of other persons in the house or of members of his family, or the presence of a lodger in the house), then for purposes of the comparison the amount of

the rent or each of the rents so payable shall be taken to be, whether it is the earlier or the later rent, the amount payable in the circumstances obtaining at the later date.

(5) Any proposals submitted by a local authority to the Minister under this section—

- (a) shall be accompanied by such information and be in such form as may be required by any directions of the Minister ;
- (b) may include provision for making rent increases by stages over a period or for limiting the proposed increases (or those proposed for any stage) in any way, whether by reference to a fixed amount or to a proportion of any rent to be increased, or by reference to a total or average amount or proportion for all the rents or some part of them, or otherwise ; and
- (c) shall state a minimum period after the making of the proposals during which the authority intend not to make, for cases covered by the proposals, further increases (apart from increases, if any, for which proposals are not required to be submitted under this section).

(6) A statement of intention included in a local authority's proposals in accordance with subsection (5)(c) above shall not preclude the authority from submitting within the stated period proposals for further increases covered by the statement ; but, if they do, the Minister may refuse consideration of the proposals unless there appear to him to be exceptional circumstances.

(7) If, on submission of proposals under this section to the Minister, he notifies the local authority of his agreement to the proposals (or two months elapse without his notifying them that he is unable to agree), then subject to any conditions attached to the agreement effect may be given to the proposals as proposals passed by the Minister ; but where it appears to the Minister that he ought not to agree to the proposals, or not without further information from the authority or further consideration of the proposals by the authority, he may within the two months notify the authority that he is unable to agree, and the submission shall then lapse.

(8) Where the Minister notifies a local authority that he is unable to agree to proposals submitted to him under this section, the local authority may, if they see fit having regard to any observations of the Minister, resubmit all or any of the proposals with or without modification ; and the provisions of this section (and in particular subsection (7) above) shall apply on the resubmission of any proposals as if they had not previously been submitted.

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(9) A local authority shall comply with any directions given by the Minister as to the information to be published, or to be given to persons concerned, about proposals submitted by the authority under this section and any steps taken thereon.

(10) Any directions given by the Minister for purposes of this section may be either general or special.

1868 c. 100.

(11) In the event of a local authority contravening or failing to comply with any requirement imposed by or under this section, proceedings for its enforcement by mandamus, injunction, interdict or otherwise (including, in Scotland, proceedings under section 91 of the Court of Session Act 1868) may be instituted by or on behalf of the Minister.

(12) Where the Minister notifies, or has before the date of the passing of this Act notified, a local authority of his agreement to proposals submitted to him before that date for increasing rents charged by the authority for local authority houses, this section shall apply as if the proposals had been submitted to and passed by the Minister under this section, and shall so apply notwithstanding that the proposals did not include a statement of intention in accordance with subsection (5)(c) above.

(13) Any administrative expenses incurred by the Minister in consequence of the provisions of this section shall be defrayed out of moneys provided by Parliament.

Mitigation of
past increases
in local
authority
rents.

11.—(1) The Minister may give directions to local authorities requiring them, not later than one month after the date the directions are given, to give him notice, in such form and containing such particulars as may be indicated by the directions, of cases of any description so indicated in which the rents payable to them in respect of local authority houses at or last before the date of the coming into force of this section exceeded the rents so payable at or last before the 31st March 1968.

(2) Where the Minister has given directions under subsection (1) above, then as regards cases of any description indicated in those directions he may give directions to a local authority requiring them within a period specified in the directions (ending not earlier than two months after the date they are given) to submit for his approval proposals for reducing rents for the purpose of mitigating rent increases taking effect after the 31st March 1968 and before the date of the coming into force of this section.

(3) If the Minister approves proposals submitted to him under subsection (2) above either without modification or with any modifications made by the local authority on reconsidering the proposals at the request of the Minister, the Minister shall

notify the authority and the authority shall put the proposals into effect accordingly; and if an authority fails to submit proposals as required by subsection (2), or the proposals submitted are not approved by the Minister, the authority shall give effect to any directions which the Minister may see fit to give for reducing rents for the purpose of mitigating the rent increases in question.

(4) On receipt from a local authority of a notice required by directions under subsection (1) above the Minister may by a further direction require the authority to give further information; but no directions shall be given to a local authority under subsection (2) above more than two months after the date on which the authority complied with the directions under subsection (1) or, if a further direction is given under this subsection, with that direction.

(5) Directions under subsection (1) above may include provision for excepting from their operation cases in which it appears to the Minister that the information to be included in a local authority's notice is otherwise at his disposal; but no exception so made shall affect the operation of subsections (2) and (3) above, except that in relation to a case not covered by a local authority's notice directions shall not be given under subsection (2) more than three months after the date the directions under subsection (1) are given.

(6) If, on consideration of a report made by the National Board for Prices and Incomes on a reference to them under section 2(1) or (3) of the Prices and Incomes Act 1966 of any question relating to rents of local authority houses, it appears to the Minister that in the case of a local authority named in the reference the provisions of this section should extend to rent increases which took effect before the 1st April 1968, then any directions under subsection (2) above may extend to those increases as if they had taken effect at or after that date, or the Minister may in relation to those increases give under this subsection the like directions as in a case within subsection (2) he may give under that subsection in relation to increases taking effect at or after that date, and subsection (3) above shall apply accordingly; but directions shall not be given under this subsection more than two months after the date of publication of the Board's report or the date of the passing of this Act, whichever is the later. 1966 c. 33.

(7) In this section expressions to which a meaning is assigned by section 10(2) above have the meaning so assigned, including any extended or modified meaning given by the proviso; and the following provisions of that section, that is to say, subsections (4), (9), (10), (11) and (13) shall apply also for purposes of this section.

PART III
Increase of
local
authority
rents without
notice to quit.

12.—(1) Subject to subsections (2) and (3) below, where a local authority house is let on a weekly or other periodical tenancy, the rent payable to the local authority under the tenancy may, without the tenancy being terminated, be increased with effect from the beginning of any rental period (that is to say, a period in respect of which a payment of rent falls to be made) by a written notice of increase given by the local authority to the tenant not less than four weeks before the beginning of the rental period (or any earlier day on which the payment of rent in respect of that period falls to be made).

(2) Where a local authority gives a notice of increase under subsection (1) above for the beginning of a rental period and the tenancy continues into that period, the notice shall nevertheless not have effect if the tenancy is terminated by notice to quit given by the tenant in accordance with the provisions express or implied of the tenancy, and—

(a) the notice to quit is given before the end of the period of two weeks following the date on which the notice of increase is given, or such longer period as may be allowed by the notice of increase; and

(b) the date on which the tenancy is made to terminate is not later than the earliest day on which the tenancy could be terminated by a notice to quit given by the tenant on the last day of that period.

(3) A local authority's notice of increase under subsection (1) above shall not be valid unless it tells the tenant of his right to terminate the tenancy and of the steps to be taken by him if he wishes to do so, and it also gives him the dates by which, if the increase is not to be effective, the notice to quit must be received by the authority and the tenancy be made to terminate.

(4) For purposes of this section "local authority" means any authority keeping a Housing Revenue Account under the Housing (Financial Provisions) Act 1958 or, in the application of this section to Scotland, the Housing (Financial Provisions) (Scotland) Act 1968, "local authority houses" are houses of which the rents fall to be carried to a local authority's Housing Revenue Account kept under that Act and "house" has the same meaning as in that Act; but this section shall have effect also in relation to a notice of increase given in relation to any other house if at the time it is given the authority giving it and the house are a local authority and a local authority house for purposes of section 10 above.

(5) This section shall apply in relation to a tenancy of a local authority house notwithstanding that the letting took place before the date of the passing of this Act.

1958 c. 42.
1968 c. 31.

PART IV

DURATION, EXTENT, ETC.

13.—(1) This Act may be cited as the Prices and Incomes Citation, Act 1968, and the Prices and Incomes Acts 1966 and 1967 duration, and this Act may be cited together as the Prices and Incomes extent etc. Acts 1966 to 1968.

(2) For all purposes of the Prices and Incomes Acts 1966 to 1968 the date of publication of a report of the National Board for Prices and Incomes shall be determined as, in accordance with section 5(1) of the Prices and Incomes Act 1966, it is to be 1966 c. 33. determined for purposes of that Act.

(3) The references in sections 10(2) and 12(4) above to the Housing (Financial Provisions) (Scotland) Act 1968 shall, in 1968 c. 31. relation to any time before the coming into force of that Act, be construed as references to the Housing (Scotland) Act 1950. 1950 c. 34.

(4) The foregoing sections of this Act other than sections 2 and 12 shall cease to have effect at the end of the year 1969 ; but—

(a) on the expiration of any section of this Act section 38(2) of the Interpretation Act 1889 shall apply as 1889 c. 63. it would apply if the section had then been repealed by a later Act ; and

(b) without prejudice to the operation of section 38(2) as so applied, the provisions of Schedule 3 to this Act shall have effect in relation to the expiration of any section of this Act there dealt with, and the expiration generally of any such section shall not affect its operation for purposes for which it is in accordance with that Schedule to continue in force.

(4) It is hereby declared that this Act, except Part III (and Schedule 3 so far as it relates to Part III), extends to Northern Ireland ; but the Parliament of Northern Ireland shall have the same power to pass Acts with respect to any matter as they would have had if this Act had not passed and, in the event of any inconsistency between any Act of the Parliament of Northern Ireland duly passed after the passing of this Act and any provision of this Act, the Act of the Parliament of Northern Ireland shall, in Northern Ireland, prevail.

SCHEDULES

SCHEDULE 1

Section 4.

1966 c. 33.

PROVISIONS OF PRICES AND INCOMES ACT 1966 APPLIED IN
RELATION TO PRICE REDUCTION ORDERS

Provision of 1966 Act	Subject matter
Section 7(4) and (5) ...	Method of framing descriptions of prices or charges, or taking account of discounts.
Section 9, together with Schedule 3.	Protection of export trade; prices and charges regulated by statute; auctions; effect on contracts; and saving for concluded contracts.
Section 11, except so much of subsection (3) as follows paragraph (c), and except subsection (4).	Offences of overcharging.
Section 20	Variation and revocation of orders, and parliamentary procedure for orders.
Section 22(1) and (5) ...	Restriction on prosecutions, and liability of directors and other officers of bodies corporate.
Section 34(3) and (4) ...	Conditional sales and hire purchase; publication in Gazette.

Section 5.

SCHEDULE 2

DEFERMENT OF WAGES REGULATION ORDERS AND AGRICULTURAL
WAGES ORDERS

PART I

WAGES REGULATION ORDERS

1959 c. 69.

1945 c. 21 (N.I.).

1. Notwithstanding anything in section 11(4) of the Wages Councils Act 1959 or, as regards Northern Ireland, section 10(4) of the Wages Councils Act (Northern Ireland) 1945, the Secretary of State or Ministry of Health and Social Services for Northern Ireland shall not be required to proceed to the making of an order giving effect to any wages regulation proposals before the end of the periods specified in paragraph 2 below.

2.—(1) The Secretary of State or Ministry may by virtue of this Schedule postpone the making of an order giving effect to wages regulation proposals for a period of three months beginning

with the date on which the wages regulation proposals were submitted or finally submitted to the Secretary of State or Ministry.

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(2) If, before an order is made giving effect to wages regulation proposals, the proposals are referred to the National Board for Prices and Incomes, then the making of the order may be postponed for a period—

(a) ending with the date of publication of the Board's report on the reference, if the report is published within three months from the date on which the reference is published in the Gazette ; or

(b) ending with those three months if the report is not so published ;

and if the Board's report is so published and contains a recommendation adverse in any respect to the wages regulation proposals, the making of the order may be postponed for an additional period, but so that the order shall be made within the twelve months beginning with the date of submission of the proposals.

In this sub-paragraph "date of submission" means the date of first submission to the Secretary of State or Ministry or, in the case of proposals resubmitted with amendments for increasing (by comparison with the proposals as previously submitted) any rate of remuneration or holidays, the date of resubmission.

3.—(1) Where the Secretary of State or Ministry postpones, by virtue of this Schedule, the making of an order to give effect to wages regulation proposals, the Secretary of State or Ministry shall at the end of the postponement proceed to the making of the order as if the order were giving effect to proposals then newly submitted ; but the order shall state that the making of it was postponed by virtue of this Schedule.

(2) Where an order does so state then—

(a) as regards periods after the proposals come into operation they shall have the like effect as if they had been brought into operation without any such postponement ; and

(b) the order may make such adaptations of the proposals, and in particular such adaptations of references to days or periods, as may be necessary to indicate that they have that effect.

PART II

AGRICULTURAL WAGES ORDERS

4. For purposes of this Part of this Schedule "agricultural wages order" and "appropriate authority" mean—

(a) in relation to England and Wales, an order made by the Agricultural Wages Board under section 3, 6, or 7 of the Agricultural Wages Act 1948, and the Minister of Agriculture, Fisheries and Food ; and

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1949 c. 30.

(b) in relation to Scotland, an order made by the Scottish Agricultural Wages Board under section 3, 6 or 7 of the Agricultural Wages (Scotland) Act 1949, and the Secretary of State ; and

1939 c. 25 (N.I.).

(c) in relation to Northern Ireland, an order made by the Agricultural Wages Board for Northern Ireland under section 2 of the Agricultural Wages (Regulation) Act (Northern Ireland) 1939, and the Ministry of Agriculture for Northern Ireland.

5. The appropriate authority may by order direct that an agricultural wages order (or such of its provisions as have not already come into operation) shall not come into operation until the end of a period of three months beginning with the date on which the agricultural wages order is made.

6.—(1) Without prejudice to paragraph 5 above, if an agricultural wages order is referred to the National Board for Prices and Incomes (the reference being published in the Gazette before the order comes into operation), the order shall not come into operation until the period mentioned below has elapsed—

(a) after the date of publication of the Board's report on the reference, if the report is published within three months from the date on which the reference is published in the Gazette ; or

(b) after the end of those three months, if the report is not so published.

The period above referred to is a period of twenty-one days or such less period as the appropriate authority may direct by notice published in the Gazette.

(2) If the Board's report is so published and contains a recommendation adverse in any respect to the coming into operation of the agricultural wages order, the appropriate authority may by order made within the said period direct that the agricultural wages order shall not come into operation for such further period as may be specified in the order of the appropriate authority, not being a period ending more than twelve months after the date on which the agricultural wages order is made.

(3) Where an agricultural wages order is referred to the National Board for Prices and Incomes and the reference is published in the Gazette before part of the provisions of the order come into operation, this paragraph shall have effect in relation to the coming into operation of that part of its provisions.

7. Where the coming into operation of an agricultural wages order is postponed (in whole or in part) under this Part of this Schedule, then as regards periods after it comes into operation it shall have the like effect as if it had come into operation without any such postponement.

8. The powers of the Minister of Agriculture, Fisheries and Food and of the Secretary of State to make orders under this Part of this Schedule shall be exercisable by statutory instrument, and any order made by an appropriate authority under this Part of this Schedule may be varied or revoked by a further order of that authority.

PART III

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SUPPLEMENTARY

9. Section 34(4) of the Prices and Incomes Act 1966 (which makes 1966 c. 33 provision about publication in the Gazette) shall apply in relation to this Schedule as it applies in relation to that Act; and where under this Schedule any period is to be computed from the date on which a reference is published in the Gazette, the period shall, if a reference under section 2(1) of that Act is varied by a reference under section 2(3), be computed in relation to either reference from the date on which the original reference under section 2(1) is so published.

SCHEDULE 3

Section 13.

SPECIAL PROVISIONS WITH REFERENCE TO EXPIRATION

1. As regards the expiration of section 1 of this Act any provision of the Prices and Incomes Acts 1966 and 1967 which would have effect on or in relation to the expiration of a period specified in an Order in Council under section 6(1) of the Prices and Incomes Act 1966 for the bringing into force of sections 7 to 22 of that Act (including the provision made by section 6(1) for extension of such a period) shall have effect in like manner.

2. The expiration of section 3 or section 4 of this Act shall not affect any order previously made under or by virtue of the section nor the operation of the section for purposes of any such order and matters arising therefrom.

3. Where before the expiration of section 5 of this Act a report of the National Board for Prices and Incomes is published containing a recommendation adverse in any respect to wages regulation proposals or an agricultural wages order, the expiration of that section shall not, in the case of wages regulation proposals, affect the operation of Part I of Schedule 2 to this Act in relation to the proposals or, in the case of an agricultural wages order, affect any order previously made under paragraph 6(2) of the Schedule with respect to it or the operation of Part II of the Schedule for purposes of the order and matters arising therefrom.

4. Where at the expiration of Part II of this Act a company is subject to any order or directions under section 6 prohibiting it from declaring ordinary dividends as mentioned in section 6(1), the expiration shall not affect the prohibition imposed by the order or directions as regards ordinary dividends for a financial year of the company beginning before the expiration, or the prohibition imposed by section 6(2) as regards the doing of anything before the financial year last so beginning is brought to an end, or the operation of Part II for purposes of or in relation to the order or directions or any such prohibition.

5.—(1) The expiration of section 9 of this Act shall not affect the operation of the section in relation to rents previously registered under the Rent Act, until a further twelve months have elapsed.

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(2) A notice of increase given at a time when section 9 applies to it shall not have a larger effect by reason of the section ceasing to apply.

(3) The lapsing for other purposes of any regulations at the end of the twelve months referred to in sub-paragraph (1) above shall not affect the admissibility of any document as evidence (and in Scotland sufficient evidence) in accordance with the regulations.

6. Where on the expiration of section 10 of this Act the minimum period stated in accordance with section 10(5)(c) in proposals submitted by a local authority and passed by the Minister has not come to an end, then as regards rents covered by the proposals the expiration shall not affect the operation of the section in relation to rent accruing in the interval before the end of that minimum period or, if it is earlier, the end of the financial year of the local authority ending next after the expiration of the section.